

“HEAR YE THE ROD, AND WHO HATH  
APPOINTED IT.”

---

A S E R M O N

FOR

*The Fast Day,*

OCTOBER 7, 1857,

BY THE

REV. JAMES GALLOWAY COWAN,

MINISTER OF ARCHBISHOP TENISON'S CHAPEL.

LONDON :

WILLIAM SKEFFINGTON, 163, PICCADILLY.

1857.

“HEAR YE THE ROD, AND WHO HATH  
APPOINTED IT.”

A S E R M O N

FOR

*The Fast Day,*

OCTOBER 7, 1857,

BY THE

REV. JAMES GALLOWAY COWAN,

MINISTER OF ARCHBISHOP TENISON'S CHAPEL.

LONDON :

WILLIAM SKEFFINGTON, 163, PICCADILLY.

1857.

## **The Project Gutenberg eBook of "Hear Ye the Rod, and Who Hath Appointed It"**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: "Hear Ye the Rod, and Who Hath Appointed It"

Author: James Galloway Cowan

Release date: March 7, 2021 [eBook #64742]

Most recently updated: October 18, 2024

Language: English

Other information and formats: [www.gutenberg.org/ebooks/64742](http://www.gutenberg.org/ebooks/64742)

Credits: Transcribed from the 1857 William Skeffington edition by David Price

\*\*\* START OF THE PROJECT GUTENBERG EBOOK "HEAR YE THE  
ROD, AND WHO HATH APPOINTED IT" \*\*\*

Transcribed from the 1857 William Skeffington edition by David Price.

# **“HEAR YE THE ROD, AND WHO HATH APPOINTED IT.”**

~~~~~

A SERMON

FOR

The Fast Day,

OCTOBER 7, 1857,

BY THE

REV. JAMES GALLOWAY COWAN,  
MINISTER OF ARCHBISHOP TENISON’S CHAPEL.

LONDON:

WILLIAM SKEFFINGTON, 163, PICCADILLY.

1857.

***By the same Author.***

CHRISTIAN MARRIAGE INDISSOLUBLE. A plain Sermon preached at Archbishop Tenison's Chapel, on the fifth Sunday after Trinity. By James Galloway Cowan, Minister of the Chapel. 4d.

## A SERMON, ETC.

MICAH, VI, 9.

*“Hear ye the rod, and Who hath appointed it.”*

We believe that there is a GOD: that this GOD is the Maker and Preserver of all things visible and invisible; that He does now and ever shall rule over all as He has done from the beginning; that He calls the stars by name and numbers the very hairs of our heads; so that nothing, great or small, happens in heaven or earth but by His will or permission. We believe that His rule is exercised, not simply in the maintenance of fixed laws, always working the same ends by the same means, but also, in active special interferences in particular cases. We believe GOD’s rule to be a strictly moral one, that is to say, that He ever recognises and rewards what is right, and condemns and punishes what is wrong. His times of interference, it is true, are not always such as we should fix on. He often allows righteousness to be long without its rewards, and wickedness without its punishment. In the case of the individual, reward may be deferred till he enters the future state which awaits him; and so may punishment; or, it may be immediately consequent upon the act which has earned it: while not unfrequently the moral law may seem even to be for a time inverted by the prosperity of the wicked or the adversity of the godly—GOD’s patience long bears with the wilful, while His love quickly chastens the weak but willing. In the case of nations, the same discipline seems to be observed; only, as they have but a temporal existence, they are always ultimately dealt with *here* according to their deserts. For a time, indeed, what GOD is pleased to account a righteous nation may for their shortcomings and offences be abased and troubled; but ere long it will be exalted: while a sinful people, though they wax strong and are counted the excellent, and mighty, and

honourable of the earth, shall soon know terribly that sin is a reproach and an everlasting destruction.

In administering temporal reward and punishment, GOD does not call into being new elements, out of which to construct His instruments; but He avails Himself of what already exist, either directing, perhaps diverting, natural agencies, or making the dispositions or doings of men, the ministers of His providence. It is thus that He orders rain to make the earth fruitful or to flood it: wind to waft health or to bring pestilence: lightning to ripen the fruit or to blast the tree. It is thus, too, that He rewards the well-doers, out of their good thoughts and ways, and punishes sinners out of their lusts and evil pursuits, making men's own hearts and lives to be their friends or enemies.

These are the well-established principles of GOD's moral government—universal in their application, unfailing in their effects. In applying them now to the case of nations, let us remember that each nation has a purpose appointed by GOD to answer—a course to follow. It may or it may not answer that purpose and follow that course. If it does, it is blessed with prosperity; if it does not, calamity will fall upon it; and, if one and another chastisement, one and another call to repentance and amendment, prove fruitless, utter destruction is its inevitable doom. “Thus saith the LORD; If ye will not hearken to ME, to walk in my law, which I have set before you, to hearken to the words of My servants the prophets, whom I sent unto you, both rising up early, and sending them, but ye have not hearkened; then will I make this house like Shiloh” (which at that time lay desolate), “and will make this city a curse to all the nations of the earth.” (Jer., xxvi, 4–6.) The kingdom of Judah was on a last trial when thus addressed by the prophet Jeremiah. Calamity after calamity had fallen upon it, combining chastisement and warning. Prophets had been sent to interpret these calamities, to reprove the people for their transgressions and to exhort them to amendment, with the promise of consequent restoration to Divine favour; but all was in vain: they would not see, they would not hear, they would not return; and so within two years Jerusalem was “an heap of stones, and her king and people were wailing captives beside the river of Babylon.”

A warning this, and a very solemn one, to all nations; but more especially to ours, my brethren, because we seem to be chosen like the Jews to be a

peculiar people to the LORD—our privileges are higher, and consequently our responsibilities greater, than those of other nations. If sin is a reproach to *any* people, we are sure it must be a crying offence in *us*: for what nation is there that hath GOD so nigh unto them as the LORD our GOD is to us in all things that we call upon Him for? And if He has drawn us thus nigh to Him, does He not require us more than others to draw nigh to Him? If we are, as we boast of being, “the temple of the LORD,” surely we shall be more displeasing to Him than un-consecrated ground, if we become a den of thieves or a house of unholy traffic. He has exalted us to be the first of nations in religious, political, and social privileges. He has done great things for us. He therefore expects much of us. If, then, we grow unmindful of Him, and nationally dishonour His holy name, whereby we are called, either by neglect or transgression, we may expect His rod of chastisement, His visitation of judgment. In some of the ways in which He afflicted His people of old, He will afflict us, and with the same design; for a long time, to correct us and restore us to obedience and so to favour; but ultimately, if we refuse to be reformed, to make us feel the weight of His wrath and to cause us to cease from among the nations of the earth. I am not going to adduce proofs that GOD so deals with nations. Every reader of the Bible can find them for himself. He has but to study in Scripture light the history of kingdoms, to ascertain beyond a doubt that righteousness ever exalts a nation, and that sin is ever the reproach, and sin persisted in ever the ruin of any people; and that by GOD’s irreversible appointment and by His superintending Providence. Now this knowledge we may use in two ways. Anticipating the effect from the cause, we may deter ourselves from national sin, by considering that its commission will surely provoke a national judgment: or looking back from the effect to its cause, we may find in national judgments a sure indication that as a people we have displeased GOD, that there is something in us which He would correct and punish.

We shall not be at a loss to ascertain what are national judgments, if we bear in mind that in Scripture they are represented as identical with national calamities. Anything that affects the honour, the influence, the lives, the resources of our people is a judgment, of mercy or wrath—of mercy it will prove, if we heed it; of wrath if we heed it not. When, then, a famine starves our people, or a pestilence cuts them off, or an enemy assails them, or they are involved in an aggressive war, or perplexed by civil commotions



and intestine broils, we may be sure that GOD's judgment is upon the earth, that He is requiring us to learn righteousness, or to eat the fruits of iniquity. War in all its forms, aggressive, defensive, or intestine, is assuredly a Divine judgment. It may be, often is, that the sword is put into a people's hand for them to use as the soldiers of GOD: but that sword is always two-edged, wounding those who wield it as well as those on whom it falls. To be thus enlisted in the service of GOD should never be the source of self-gratulation or be regarded as a proof of Divine favour. It is a calamity (that is, a Divine judgment), even when we maintain the righteous cause of a weak ally, or defend ourselves from a wanton aggressor, or put down our wickedly rebellious subjects. Assyria's hosts in fighting GOD's battles were made to punish themselves. Israel had no warfare to wage when GOD was well pleased with it, but only when it required correction. And we, my brethren, in our last two righteous wars, had surely proofs enough in the loss of our best blood, the drain upon our resources, the griefs, the anxieties, the perplexities, that to be GOD's agents of vengeance is no privilege to be coveted; that is a scourge, a fearful scourge, which a GOD who never afflicts willingly—that is, in mere caprice—would not have laid upon us, had we not needed chastisement, had we not provoked Him to displeasure.

And what shall we say of that which is uppermost in all men's minds and foremost on all their tongues at this time—our warfare in India? Is our part therein a righteous one? Assuredly. Do those to whom we are opposed merit the severest chastisement our sword can inflict on them? Who dare doubt it? Does GOD call on us to punish them, in His name and as His deputies? We all reverently believe that He does. Is it then all glory, all privilege, all favour—that we are thus employed? Surely the many disasters, the sad, sad troubles we have already encountered, the further troubles which, without a prophet's skill, we can see to be awaiting us, must convince us to the contrary. The famine-stricken garrison allowed by Him who can save by few as well as by many, who can give food from Heaven, or sustain without it, to yield itself to the foully treacherous foe—the pestilence-stricken band of noble, righteous warriors checked in their good career—are these proofs of GOD's unmingled approbation? Would He without a purpose ever have allowed such contending elements as Hindooism and Mohammedanism to combine against us? Would He who restrained this ripe rebellion when our forces were elsewhere doing His

work, have given a loose to it now, had He deemed us worthy of His constantly protective power? Would not He, who in some cases has caused a mere handful of men to put to flight a host, a woman to keep at bay a score of infuriated agents of Satan—would not He have led us in all cases to easy triumph—have crowned us long since with complete bloodless victory and trampled all those that hate us under our uninjured feet—had we not deserved the rod of chastisement? By His occasional intervention on our behalf, He has vindicated the general righteousness of our cause, and manifested His power to help us when He will. Would not that aid, then, have been more frequent, would it not have been constant, had we so deserved to conquer? Recollect (it cannot be too strongly or too frequently impressed upon you) God is free from all caprice; He does not afflict without a cause. He may and does spare when we deserve punishment; He cannot afflict without provocation.

In thus tracing effects to their causes, I am not pointing at the calamities which have befallen individuals, further than as illustrations of the general judgment. They were not sinners above the rest of men, upon whom the tower in Siloam fell. The wicked man often lives on in outward prosperity and comes in no misfortune like other folk; while the righteous is afflicted and goes mourning all his days, or is cut off in the midst of them.

Inoffensive women, innocent children, godly servants of the Cross have endured unspeakable agonies, and gone dishonoured before men to the grave; while unbelievers, and blasphemers, and licentious, have, perchance, escaped unhurt, unassailed. No matter: a *future* state will set that right—Lazarus is comforted—Dives has as yet his good things; but if he haste not to repent, he will ere long be tormented. But, as before urged, there is no future state for nations. Their visitations therefore are always judicial; and when, as in our present case, they are full of calamity, it is clearly manifest that they are the fruit of sin.

And cannot any reflecting mind, informed of our manner of rule in India, discern the nature and point to the instances of our provoking sin? A wonderful Providence has made us, on most easy terms, possessors of a territory abounding in all kinds of riches: we have brought home thence great stores of treasure: we have found there lucrative and desirable employment for our children, who in their turn have been enabled to make ample provision for their families, and we have reaped there many other

advantages. With the soil, we have acquired dominion over some two hundred millions of human beings, possessed like ourselves of immortal souls, and destined to inherit an eternal state of bliss or woe, according as they shall have pleased or displeased God in the flesh. We found these natives sunk in various forms of the most degrading superstition, gratifying (as they thought *religiously*) the most grovelling lusts, and practising the most inhuman rites. At the time when our chartered merchants took possession of the ground they had purchased for warehouse room, the full glare of the Gospel-light shone upon us. The semi-darkness of Popery had been dispelled. It was the triumph-day of the Reformation.

Now, it is a first principle of the Gospel (which we had then no excuse for not understanding), that none of us lives for himself; that a candle is not lighted to be hid under a bushel; that what we have received, Christian love and Christian duty require us to impart. Yet we traded with these benighted people, and lived among them, without allowing them to see the faintest glimmer of the true light. By and by, we became their masters, or rather stewards over them for God. We knew the religious responsibilities which rest upon the rulers of a household, we could not plead ignorance of the duties of stewards; still, not only did we refrain from discharging these duties by instructing and regulating those of whom we had the charge, but we actually ignored in their sight our own recognition of God, and our own personal responsibility to a Divine Master. So that they not unnaturally judged that we were infidels, acknowledging no religious faith at all. It was a common remark made on all sides, “When an Englishman goes to India, he leaves his religion at the Cape”—because no sign of its having accompanied him was ever witnessed.

And this, be it observed, was not because the servants wantonly disregarded their employers’ injunctions. It is recorded in history against the East India Company (and I need not tell you that the responsibility does not rest wholly on them), that they never sought to make converts to Christianity, but only to get money in India. Nor, my brethren, is this a crime, a dereliction of most solemn duty chargeable on past ages only. To this day and hour, no effort has been made by authority to persuade the natives to become Christians. Nay, worse; no clear exhibition of Christianity has been made to them. There are, it is true, three bishoprics in the country, erected (and supported) by voluntary societies, when the tardy permission was

given. There are also Company's chaplains at the various military stations, and there are some few missionaries. But the whole number at the beginning of the present outbreak was only in the proportion of one clergyman to some eight or nine hundred thousand natives. I know that some persons would object, that even this little show of Christianity has been injurious to our tenure of the country; that it has roused the suspicions of the jealous infidels, lest they should be coerced into an acceptance of our religion—that, in fact, it has caused the present outbreak. My brethren, this statement is scarcely worthy of a refutation. If it were, I could furnish it in the larger attendance of native children at the Missionary schools where the Bible is read, than at the Government schools from which it is excluded; and in the candid testimony of unconverted Hindoos, that their greatest suspicions of compulsory conversion was founded on the timid, half-concealed profession of Christianity by the English. But, my brethren, suppose it even so: suppose that an attempt to proclaim Christianity did meet with opposition, did provoke mutiny, is not this what it has ever had to contend against? Should you and I be Christians this day, if the brave missionaries who first came to our island had desisted at the earliest menace or murmur of the Ancient Britons or Anglo-Saxons? O let no such vain and impious excuse be made! We are bound as a Christian nation to exhibit Christianity to all our subjects; or, at any rate, to encourage the efforts of societies and individuals to do it. We must do it discreetly, but it must be done. How else shall we give account of our stewardship—that stewardship entrusted to us for the good of our subjects? But, my brethren, we have not even brought moral influences to bear upon this people. In our country every one is bound at least to obey the common law, and so is he (as far as I know), in all our dependencies, *save in India*. But there (some restraints have of late years been laid on them) infanticide, widow-burning, wholesale polygamy, and many other equally flagrant crimes have been tolerated, nay, deliberately sanctioned, because, forsooth, they are part of the Mohammedan or Hindoo religion.

Do we not deserve a judgment for this? And have we not got it, alas! *in kind*? We have left the Mohammedan to believe that it is heavenly to gratify lust, that it is meritorious to kill the disbeliever in his prophet. We have left the Hindoo (till lately) to destroy the widow, to murder the infant. And has not this had its influence in the treatment of our outraged and

murdered ones—the men of peace, as well as the warriors, the women and the helpless babes?

This is not the place, nor am I the person to discuss at length the causes and cure of the Indian mutiny. My aim has only been to give you some glimpses of it in its religious light; and so to help you to see GOD's hand in it, that you may seek relief from Him; and, according to your several opportunities, take counsel and use efforts to avert this judgment, and others, of which, if neglected, this will be the sure forerunner. "Hear ye the rod, and Who hath appointed it."

With such sense of our neglect of GOD's work, and our fearful responsibility to Him, let us draw near to the Throne of Mercy on this Solemn Fast Day. Let us humble ourselves as a people for the aggregate of this sin, and as individuals, for the shares in it, which by our deeds, our influence, our voice, our silence, we have respectively had. Let us consider, too, that as this wound in a "member," affects the whole "body," so may it have been inflicted for the sins of the whole body. The moral corruption, the tolerated, the sanctioned, the *justified* sins of this land, the general disregard of GOD as the administrator of temporal affairs, the unwilling acknowledgment, often withheld, of responsibility to Him; the sins like in kind to those which now excite our horror and indignation, the deceit and fraud, the atrocious murders, the daring deeds of uncleanness, the reckless meddling with the sacred law of marriage here at home—who shall say that this unhealthy state of the "body" has not helped to cause the sore in the "member"? And who shall not acknowledge that it is of Divine Mercy that that sore has not broken out in a more vital part? O then, as we "hear the rod, and Who hath appointed it," let us not only submissively receive the chastisement, but also humbly and thankfully adore the clemency, which has made it so much lighter than we deserved.

But this is a day of requests as well as acknowledgments. We have to make our humble petitions to Almighty God; and to be acceptable petitioners, we must offer righteous prayers—righteous, not simply in the feeling that we merit punishment, that we do not merit mercy; but in the resolution to provoke punishment no longer; to deserve, by appreciating and turning to godly advantage, the supplicated mercy. "We have done wrong, we repent, we pledge ourselves to amend:" in this tone do we pray for peace and the

restoration of our dominion; at least if we do not, the intelligent Christian must devoutly hope that our prayers may not be answered. Better, far better would it be, much as the worldly-wise will deride the folly of the assertion, that we should lose India altogether, than that it should be given back to us in anger; than that it should be again a wide field, on which to display our contempt of Christianity's strongest obligations: we the holders of a gift, which not to hand on is to lose, seeming not to know that we have that gift: we the soldiers of the Cross to connive at, to sanction, and so to adopt and establish the dominion of Satan! O, as you pray for the success of our soldiers' arms, asking that they may prevail and execute justice (*not revenge*) and restore peace, let it be with the resolution that so soon as the fitting time arrives, your voice, and influence, and means shall do their utmost to send out a spiritual army, to obtain a better conquest, to set up a more glorious dominion, to secure a more lasting and effectual peace wherein righteousness shall reign!

Meantime, let us not forget—oh, their case will bear no delay!—the immediate sufferers under the Divine displeasure. Too many, alas! have already drunk the bitterest dregs of our cup of visitation. Brutally treated, savagely murdered, it is too late to do anything for them. But there are many whom danger as yet but threatens; whom fiendish lust and cruelty are seeking to grasp and victimise; whom the sword may smite or the pestilence lay low, or the famine starve. What can we do for them? I am not asking what the Government is to do for them: they know their work, and seem fully bent on doing it: but what can we, as individual Christians, here at home do? What, my brethren, but pray for them? Besiege the throne of God daily: intreat Him, if it is needful to smite us yet longer with His rod, at least to bear less heavily on the innocent and helpless, to prepare those whom He wills to take, for death and the judgment that comes after death; to sanctify their sufferings; to comfort those who mourn for them.

And something else remains for us to do. There are sufferers in this sad mutiny who have escaped with life, but nothing else. We read of crowds of them, helpless babes without nurse or mother; gentle, delicate women, accustomed to all the comforts of life, huddled together in one room—their hearts torn with the loss of those they loved—their minds distracted with the remembrance of the atrocities they have witnessed—perhaps experienced—their bodies enfeebled, if not diseased, through their

unspeakable hardships—without a comfort of any kind, or the means of procuring it! You know what to do for them. You know the value and power of sympathy timely shown in relieving pain, in binding up the wounds of the heart. In the name of the Great Sympathiser be not slow to manifest that sympathy in all possible ways; and as a substantial proof that you have it, lose no time in sending your contributions to the Fund which is to relieve their most pressing wants.

I will not do you wrong by supposing that you need words of mine to urge you to this duty. If the knowledge of the facts which you possess did not move you, it were vain to expect that any reasoning, any expostulation, any entreaty would avail. Whoso hath this world's goods, and seeth his brother in *such* need, and shutteth up his compassion from him, how dwelleth the love of GOD—or anything else excellent or human—in him?

---

F. Shoberl, Printer to H.R.H. Prince Albert, 51, Rupert Street, Haymarket.

**PUBLISHED BY**  
**WILLIAM SKEFFINGTON, 163, PICCADILLY.**

---

BY JOHN JACKSON, D.D., LORD BISHOP OF LINCOLN.

THE WITNESS OF THE SPIRIT. Sermons preached before the University of Oxford. Second edition, fcp. 8vo, 5s. 6d.

THE SINFULNESS OF LITTLE SINS. Contents:—I. The Exceeding Sinfulness of Sin. II. Sins of the Temper. III. Sins of Pride and Vanity. IV. Sins of the Thoughts. V. Sins of the Tongue. VI. Sins of Omission. Ninth edition, 3s. 6d.

REPENTANCE: ITS NECESSITY, NATURE, AND AIDS. Contents:—I. The Necessity of Repentance. II. The Nature of Repentance. III. The Properties of true Repentance. IV. The Aids of Penitence. V. The Aids of Penitence (continued). VI. The Pardon of Penitence. Fifth edition, fcp. 8vo, 3s. 6d.

THE SPIRIT OF THE WORLD, AND THE SPIRIT WHICH IS OF GOD. A Sermon addressed to the Newly-confirmed, and preparatory to the Holy Communion. Third edition, 1s.

THE DAY OF PRAYER, AND THE DAY OF THANKSGIVING. Two Sermons. Second edition, 1s.

ROME AND HER CLAIMS. Second edition, 6d., or 5s. per dozen.

SUNDAY A DAY OF REST, OR A DAY OF WORK? A Few Words to Working Men. Fifth thousand, 2d., or 1s. 6d. per dozen.

WAR: ITS EVILS AND DUTIES. A Sermon preached in the Cathedral Church of Lincoln, April 26, 1854. Second edition, 6d.

---



JOB: a Course of Lectures preached in the Parish Church of St. James's, Westminster, on the Fridays in Lent, A.D. 1855. By John Edward Kempe, M.A., Rector of St. James's. Fcp. 8vo, 3s. 6d.

*By the same Author—*

THREE SERMONS ON THE WAR, preached in the Parish Church of St. James's, Westminster. Contents:—I. "Be not High-minded." II. The Lawfulness of War. III. "Humble Yourselves." Fcp. 8vo, 2s. 6d.

---

GOD'S SECOND CHASTISEMENT OF WAR, AND HOW TO AVERT IT. A Sermon preached on the Fourteenth Sunday after Trinity, in a Country Church. By the Rev. Henry Swabey, M.A., late Rector of St. Aldate's, Oxford. 6d.

PEACE, GOD'S GIFT, AND HOW TO USE IT. A Sermon preached in the Temple Church, on the Second Sunday after Easter, 1856. By Henry Hayman, B.D., Assistant Preacher, late Fellow of St. John's College, Oxford. 8vo, 1s.

WAR, ITS LAWFULNESS: PEACE, ITS BLESSINGS. A Sermon by the Rev. Jordan Palmer, M.A., late Senior Curate of Camden Town. Second Edition, 8vo, 1s.

A PRACTICAL TREATISE ON EVIL THOUGHTS: wherein their Nature, Origin, &c., are considered: with Rules for their Restraint and Suppression. By William Chilcot, M.A. New edition, 2s. 6d.

HYMNS FOR USE IN CHURCH. Collected by the Rev. H. W. Burrows, B.D., Perpetual Curate of Christ Church, St. Pancras. Second edition. 1s.

THE CHURCH AND THE PEOPLE. Twelve Sermons preached at St. Luke's, Berwick Street. By Henry Whitehead, M.A., Curate of St. Matthew's, Westminster. Fcp. 8vo, 4s.

\*\*\* END OF THE PROJECT GUTENBERG EBOOK "HEAR YE THE  
ROD, AND WHO HATH APPOINTED IT" \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

## 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the



efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.